

ASCII MASTER FLOW – PANEL 1/9: Ombudsman evolution and the statutory anti-corruption design

ROOT QUESTION

How can high public office be investigated without merging complaint, police and court?

1809 Sweden -> ombudsman model.

1966 First ARC -> Union Lokpal + State Lokayuktas.

1968 onward -> repeated Bills.

2013 Act -> assent 1 January 2014 -> commencement 16 January 2014.

LEGAL IDENTITY

statutory | corruption-specific | Union institution | no general suo-motu route.

CORE DISTINCTION

Lokpal directs a legal process; the Special Court decides criminal guilt.

ASCII MASTER FLOW – PANEL 2/9: Composition, selection, search, tenure and removal lifecycle

COMPOSITION

Chairperson + not more than eight Members.

50% of Members judicial | at least 50% of Members from named social categories.

SELECTION COMMITTEE

PM | Lok Sabha Speaker | Lok Sabha LoP | CJI or nominee | eminent jurist.

SEARCH COMMITTEE

assists with a panel; it does not appoint and its panel is not the final decision.

TENURE

five years or age seventy, whichever earlier | no reappointment.

REMOVAL

President + Supreme Court inquiry for misbehaviour; statutory direct grounds are separate.

Common Cause v. Union of India (2017)

vacancy did not make the Act unworkable or create a substitute committee seat.

ASCII MASTER FLOW – PANEL 3/9: Jurisdiction map: Prime Minister, MPs, officials and covered entities

PERSONAL REACH

PM | Union Ministers | MPs | Groups A-D | specified financed/foreign-funded entities.

PM FILTER

excluded subjects: international relations | external/internal security | public order
| atomic energy | space.

Full bench + at least two-thirds approval | in-camera inquiry | record controls.

MP FIREWALL

speech or vote protected by Article 105(2) is outside the statutory route.

Sita Soren (2024) v. Union of India

legislative bribery is not constitutionally immunised merely because it relates to a vote.

TRAP

wide personal jurisdiction != unrestricted subject-matter jurisdiction.

ASCII MASTER FLOW – PANEL 4/9: Complaint-to-trial chain with natural justice and statutory timelines

PRESCRIBED COMPLAINT

identity + form + allegation + supporting material -> Registry scrutiny.

LOKPAL CHOICE

preliminary inquiry | direct investigation | in-limine closure within legal bounds.

PRELIMINARY INQUIRY

prima facie screen -> public-servant hearing -> report ordinarily within ninety days with recorded extension.

INVESTIGATION

evidence collection -> report ordinarily within six months with recorded extensions.

THREE-MEMBER BENCH

closure | departmental action | sanction/prosecution route.

END POINT

Prosecution Wing or agency -> Special Court -> conviction or acquittal.

ASCII MASTER FLOW – PANEL 5/9: Wings, CVC, CBI and superintendence without institutional merger

INQUIRY WING

preliminary inquiry and prima facie assessment.

PROSECUTION WING

files and conducts prosecution when Lokpal directs.

CVC ROUTE

specified Groups A-D preliminary-inquiry categories under the statutory distribution.

CBI / DSPE ROUTE

criminal investigation; Lokpal superintendence is confined to Lokpal-referred matters.
Investigating-officer transfer in a referred matter needs Lokpal approval.

VIGILANCE / WHISTLEBLOWER / GRIEVANCE

distinct entry tests and outputs; no automatic jurisdictional substitution.

LIMIT

superintendence != power to dictate a predetermined investigative result.

ASCII MASTER FLOW – PANEL 6/9: Powers, assets, limitation, attachment and Special Court control

PROCESS POWERS

search/seizure | civil-court powers | provisional attachment | prosecution sanction.

ATTACHMENT

recorded reasons + suspected corruption proceeds + maximum ninety-day provisional order
-> material sent to Special Court -> confirmation, refusal or later restoration.

SECTION 44

2016 substitution -> assets/liabilities in prescribed form and manner.
Checked official material did not yield a later fresh replacement form-and-manner rule.

LIMITATION

complaint barred after seven years from the alleged offence.

FALSE COMPLAINT

statutory safeguard requires legal proof; it must not deter bona fide disclosures.

Lok Prahari v. Union of India (2018)

electoral disclosure case; it did not restore the pre-2016 Lokpal return format.

ASCII MASTER FLOW – PANEL 7/9: Lokayuktas: State-law variation inside a common federal objective

SECTION 62

each State shall establish a Lokayukta by State law.

VARIATION AXES

single/member body | selection panel | tenure | jurisdiction | suo-motu power
| minister coverage | investigation support | recommendation/enforcement route.

DO NOT UNIVERSALISE

one State's Governor panel, age, term, Upalokayukta or report consequence.

FEDERAL GAIN

State adaptation and experimentation.

FEDERAL RISK

uneven minimum protection, vacancies and dependence on State agencies.

REFORM

model baseline + State autonomy + transparent appointments + public follow-up.

ASCII MASTER FLOW – PANEL 8/9: Cases, independence deficits, accountability controls and reform priorities

CASE SPINE

Common Cause v. Union of India (2017) -> appointment cannot be blocked by committee vacancy.
Lok Prahari v. Union of India (2018) -> electoral disclosure, not section 44 rulemaking.
Sita Soren (2024) v. Union of India -> bribery outside legislative privilege immunity.

2025 HIGH COURT-JUDGE ISSUE

Supreme Court stay is interlocutory control; jurisdiction is not finally expanded.

INDEPENDENCE RISKS

executive weight in selection | vacancy | agency reliance | opaque closure | capacity gaps.

ACCOUNTABILITY CONTROLS

reasons | hearing | judicial review | Special Court | reports | removal safeguards.

REFORM

timely vacancies + clear section 44 rules + interoperable tracking + reasoned publication.

ASCII MASTER FLOW – PANEL 9/9: UPSC traps, PYQ route and qualified answer synthesis

PRELIMS FIREWALL

statutory, not constitutional | maximum eight Members | PM included with filters
| speech/vote exclusion | no general suo-motu power | seven-year limitation
| referred-case CBI superintendence only | Lokayukta design varies.

2025 PRELIMS ROUTE

jurisdiction + composition -> test percentage denominator, PM safeguards and privilege.

MAINS SPINE

ombudsman evolution -> legal identity -> composition/independence
-> jurisdiction -> complaint-to-court process -> agency interfaces
-> powers and safeguards -> State variation -> capacity reform.

VERDICT

Lokpal has real process powers, but credibility depends on appointments, agency autonomy, reasoned transparency and court-controlled legality rather than institutional mythology.